

THE UNIVERSAL HOUSE OF JUSTICE

1993-01-24

1 dear b ahá'í friend,
2 further to our letter of 14 November 1991, the universal house of jus-
3 tice has now completed its consideration of your letter of 21 September 147 .3
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151 171991, in which you raised a number of questions pertaining to violence and
to the sexual abuse of women and children. we have been instructed to
152 provide the following response to your questions.
153 As you know, the principle of the oneness of mankind is described in the
154 bahá'í writings as the pivot round which all the Teachings of bahá'u'lláh
155 revolve. it has widespread implications which affect and remold all dimen-
156 sions of human activity. it calls for a fundamental change in the manner
157 in which people relate to each other, and the eradication of those age-old practices
which deny the intrinsic human right of every individual to be treated with consideration
and respect.
158 within the family setting, the rights of all members must be respected.
159 'Abdu'l-b ahá has stated:
160 The integrity of the family bond must be constantly considered and the rights of the
individual members must not be transgressed. The rights of the son, the father, the
mother—none of them must be trans-gressed, none of them must be arbitrary. just as the son
has certain
161 obligations to his father, the father, likewise, has certain obligations to his son. The
mother, the sister and other members of the household have their certain prerogatives. All
these rights and prerogatives must be conserved. . . .
162 149-1

163 The use of force by the physically strong against the weak, as a means of
164 imposing one's will and fulfilling one's desires, is a flagrant transgression of
165 the bahá'í Teachings. There can be no justification for anyone compelling
166 another, through the use of force or through the threat of violence, to do
167 that to which the other person is not inclined. 'Abdu'l-b ahá has written, "o
168 ye lovers of god! in this, the cycle of Almighty god, violence and force,
169 constraint and oppression, are one and all condemned."149-2 let those who,
170 driven by their passions or by their inability to exercise discipline in the
171 control of their anger, might be tempted to inflict violence on another hu-
172 man being be mindful of the condemnation of such disgraceful behavior by the r
173 evelation of b ahá'u'lláh.

173 149-1. pup , pp. 232–33.

174 149-2. Sw Ab, no. 129.11.149.2

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150 m e S a g e S f r o m T h e u n i v e r S a l h o u S e o f j u S T i c e

151 18Among the signs of moral downfall in the declining social order are the
152 high incidence of violence within the family, the increase in degrading and
153 cruel treatment of spouses and children, and the spread of sexual abuse. it
154 is essential that the members of the community of the greatest Name take
155 utmost care not to be drawn into acceptance of such practices because of
156 their prevalence. They must be ever mindful of their obligation to exem-
157 plify a new way of life distinguished by its respect for the dignity and rights
158 of all people, by its exalted moral tone, and by its freedom from oppression and from
all forms of abuse.

consultation has been ordained by bahá'u'lláh as the means by which

159 agreement is to be reached and a collective course of action defined. it is
160 applicable to the marriage partners and within the family, and indeed, in all areas
where believers participate in mutual decision making. it requires

161 all participants to express their opinions with absolute freedom and with-out
apprehension that they will be censured or their views belittled; these prerequisites for

success are unattainable if the fear of violence or abuse is present.

A number of your questions pertain to the treatment of women, and

162 are best considered in light of the principle of the equality of the sexes which is set
163 forth in the bahá'í Teachings. This principle is far more than the

164 enunciation of admirable ideals; it has profound implications in all aspects

165 of human relations and must be an integral element of bahá'í domestic and

166 community life. The application of this principle gives rise to changes in

167 habits and practices which have prevailed for many centuries. An example

168 of this is found in the response provided on behalf of Shoghi effendi to a

169 question whether the traditional practice whereby the man proposes mar-

170 riage to the woman is altered by the bahá'í Teachings to permit the woman

171 to issue a marriage proposal to the man; the response is, "The guardian

172 wishes to state that there is absolute equality between the two, and that no distinction
173 or preference is permitted. . . ." with the passage of time, during

174 which bahá'í men and women endeavor to apply more fully the principle of

175 the equality of the sexes, will come a deeper understanding of the far-reach-

ing ramifications of this vital principle. As 'Abdu'l-b ahá has stated, "u ntil

the reality of equality between man and woman is fully established and

attained, the highest social development of mankind is not possible."

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149-3. pup , p. 105.149.5

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151 ment be given to bahá'í women and girls to participate in greater measure in

152 the social, spiritual and administrative activities of their communities, and

153 has appealed to bahá'í women to arise and demonstrate the importance of

154 their role in all fields of service to the f aith.

155 for a man to use force to impose his will on a woman is a serious trans-

156 gression of the b ahá'í Teachings. 'Abdu'l-b ahá has stated that:

The world in the past has been ruled by force, and man has

dominated over woman by reason of his more forceful and aggressive

157 qualities both of body and mind. but the balance is already shifting;
158 force is losing its dominance, and mental alertness, intuition, and the
159 spiritual qualities of love and service, in which woman is strong, are

gaining ascendancy.149-4

160 bahá'í men have the opportunity to demonstrate to the world around them
161 a new approach to the relationship between the sexes, where aggression and the use
of force are eliminated and replaced by cooperation and con-
162 questions addressed to it that, in a marriage relationship, neither husband nor wife
should ever unjustly dominate the other, and that there are times
163 when the husband and the wife should defer to the wishes of the other,
164 if agreement cannot be reached through consultation; each couple should determine
exactly under what circumstances such deference is to take place.

from the pen of bahá'u'lláh himself has come the following statement

165 on the subject of the treatment of women:
166 The friends of god must be adorned with the ornament of justice,
167 equity, kindness and love. As they do not allow themselves to be the object of cruelty
and transgression, in like manner they should not allow such tyranny to visit the
handmaidens of god. he, verily, spea-

keth the truth and commandeth that which benefiteth his servants

and handmaidens. he is the protector of all in this world and the

168 next.

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170 149-4. lg, no. 2079.

171 149-5. cc 2:2145.149.8

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149 9a

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149 10a

150 m e S a g e S f r o m T h e u n i v e r S a l h o u S e o f j u S T i c e

151 20No bahá'í husband should ever beat his wife, or subject her to any form of

152 cruel treatment; to do so would be an unacceptable abuse of the marriage

153 relationship and contrary to the Teachings of bahá'u'lláh.
154 The lack of spiritual values in society leads to a debasement of the atti-
155 tudes which should govern the relationship between the sexes, with women
156 being treated as no more than objects for sexual gratification and being
157 denied the respect and courtesy to which all human beings are entitled.
158 bahá'u'lláh has warned: "They that follow their lusts and corrupt inclina-
159 tions, have erred and dissipated their efforts. They, indeed, are of the lost." believers
might well ponder the exalted standard of conduct to which they
160 are encouraged to aspire in the statement of bahá'u'lláh concerning his
161 "true follower," that: "And if he met the fairest and most comely of women, he would
not feel his heart seduced by the least shadow of desire for her
162 beauty. Such an one, indeed, is the creation of spotless chastity. Thus in-
163 structeth you the pen of the Ancient of days, as bidden by your lord, the

Almighty, the All-bountiful."

164 149-6

one of the most heinous of sexual offenses is the crime of rape. when

165 a believer is a victim, she is entitled to the loving aid and support of the
166 members of her community, and she is free to initiate action against the
167 perpetrator under the law of the land should she wish to do so. if she be-
168 comes pregnant as a consequence of this assault, no pressure should be brought upon
her by the bahá'í institutions to marry. As to whether she
169 should continue or terminate the pregnancy, it is for her to decide on the course of
action she should follow, taking into consideration medical and other relevant factors, and in
the light of the bahá'í Teachings. if she gives
170 birth to a child as a result of the rape, it is left to her discretion whether
171 to seek financial support for the maintenance of the child from the father;
172 however, his claim to any parental rights would, under bahá'í law, be called
173 into question, in view of the circumstances.
174 The guardian has clarified, in letters written on his behalf, that "The
175 bahá'í faith recognizes the value of the sex impulse," and that "The proper
176 use of the sex instinct is the natural right of every individual, and it is pre-cisely for
this very purpose that the institution of marriage has been estab-

lished.”

177 149-7 in this aspect of the marital relationship, as in all others, mutual

178 149-6. gwb, nos. 136.6, 60.3.

179 149-7 . lg, no. 1156.149.11

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151 21consideration and respect should apply. if a bahá’í woman suffers abuse or

152 is subjected to rape by her husband, she has the right to turn to the Spiritual

153 Assembly for assistance and counsel, or to seek legal protection. Such abuse

154 would gravely jeopardize the continuation of the marriage, and could well lead to a condition of irreconcilable antipathy.

155 you have raised several questions about the treatment of children. it is

156 clear from the bahá’í writings that a vital component of the education of

157 children is the exercise of discipline. Shoghi effendi has stated, in a letter

158 written on his behalf about the education of children, that:

discipline of some sort, whether physical, moral or intellectual is

159 indeed indispensable, and no training can be said to be complete and fruitful if it disregards this element. The child when born is far from

160 being perfect. it is not only helpless, but actually is imperfect, and

161 even is naturally inclined towards evil. he should be trained, his natu-

162 ral inclinations harmonized, adjusted and controlled, and if necessary

163 suppressed or regulated, so as to ensure his healthy physical and moral

development. b ahá’í parents cannot simply adopt an attitude of non-

resistance towards their children, particularly those who are unruly

164 and violent by nature. it is not even sufficient that they should pray

on their behalf. rather they should endeavor to inculcate, gently and

165 patiently, into their youthful minds such principles of moral conduct and initiate them into the principles and teachings of the cause with

such tactful and loving care as would enable them to become “true

sons of god” and develop into loyal and intelligent citizens of his

166 kingdom. . . .

167 149-8

168 while the physical discipline of children is an acceptable part of their

169 education and training, such actions are to be carried out “gently and pa-tiently” and
with “loving care,” far removed from the anger and violence

170 with which children are beaten and abused in some parts of the world. To treat
children in such an abhorrent manner is a denial of their human rights, and a betrayal of the
trust which the weak should have in the strong in a

171 bahá’í community.

172 149-8. lg, no. 510.149.14

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150 m e S a g e S f r o m T h e u n i v e r S a l h o u S e o f j u S T i c e

151 22it is difficult to imagine a more reprehensible perversion of human con-

152 duct than the sexual abuse of children, which finds its most debased form

153 in incest. At a time in the fortunes of humanity when, in the words of the

guardian, “The perversion of human nature, the degradation of human

154 conduct, the corruption and dissolution of human institutions, reveal them-selves . . .
in their worst and most revolting aspects,” and when “the voice

155 of human conscience is stilled,” when “the sense of decency and shame is

obscured,”

156 149-9 the bahá’í institutions must be uncompromising and vigilant

157 in their commitment to the protection of the children entrusted to their

158 care, and must not allow either threats or appeals to expediency to divert

159 them from their duty. A parent who is aware that the marriage partner is subjecting a
child to such sexual abuse should not remain silent, but must take all necessary measures,
with the assistance of the Spiritual Assembly or

160 civil authorities if necessary, to bring about an immediate cessation of such

161 grossly immoral behavior, and to promote healing and therapy.

bahá’u’lláh has placed great emphasis on the duties of parents toward

162 their children, and he has urged children to have gratitude in their hearts

163 for their parents, whose good pleasure they should strive to win as a means of
pleasing god himself. however, he has indicated that under certain

164 circumstances, the parents could be deprived of the right of parenthood as
165 to legislate on this matter. it has decided for the present that all cases should
166 be referred to it in which the conduct or character of a parent appears to
167 render him unworthy of having such parental rights as that of giving con-
168 sent to marriage. Such questions could arise, for example, when a parent
169 has committed incest, or when the child was conceived as a consequence of rape, and
also when a parent consciously fails to protect the child from flagrant sexual abuse.

170 As humanity passes through the age of transition in its evolution to a
171 world civilization which will be illuminated by spiritual values and will be
distinguished by its justice and its unity, the role of the bahá'í community
172 is clear: it must accomplish a spiritual transformation of its members, and must offer
to the world a model of the society destined to come into being through the power of the
revelation of bahá'u'lláh. membership in the

173 bahá'í community is open to all who accept bahá'u'lláh as the manifesta-
174 tion of god, and who thereupon embark on the process of changing their
175 149-9. wob, p. 187 .149.16

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151 2conduct and refining their character. it is inevitable that this community
152 will, at times, be subject to delinquent behavior of members whose actions
153 do not conform to the standards of the Teachings. At such times, the in-
154 stitutions of the faith will not hesitate to apply bahá'í law with justice and
155 fairness in full confidence that this divine law is the means for the true
156 happiness of all concerned.

157 however, it should be recognized that the ultimate solution to the prob-
158 lems of humanity lies not in penalties and punishments, but rather in spiri-tual
education and illumination. 'Abdu'l-b ahá has written:

it is incumbent upon human society to expend all its forces on the

159 education of the people, and to copiously water men's hearts with the sacred streams
that pour down from the realm of the All-merciful,

160 and to teach them the manners of heaven and spiritual ways of life,

161 until every member of the community of man will be schooled, re-fined, and exalted
to such a degree of perfection that the very commit-ting of a shameful act will seem in itself
the direst infliction and most

agonizing of punishments, and man will fly in terror and seek refuge

in his god from the very idea of crime, as something far harsher and

162 more grievous than the punishment assigned to it.

163 it is toward this goal that the community of the greatest Name is striving,

164 aided and reinforced by the limitless power of the h oly Spirit.

165 with loving b ahá'í greetings,

Department of tHe secretariat

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Publication of English Translation

of the Kitáb-i-Aqdas

[signed: The Universal House of Justice]